ELECTRONICALLY FILED
Arkansas Court of Appeals
Kyle E. Burton, Clerk of the Courts
2025-Jan-27 15:48:25
CV-23-100
18 Pages

CV-23-100

IN THE ARKANSAS SUPREME COURT

PHILLIP CARTER AND ANTOINETTE CARTER-HARRIS, AS LEGAL GUARDIANS OF ANTOIN HARRIS, AN INCAPACITATED PERSON — APPELLANTS

V.

ENTERGY ARKANSAS, INC. — APPELLEE

ON APPEAL FROM THE CIRCUIT COURT
OF JEFFERSON COUNTY, ARKANSAS

THE HONORABLE ROBERT H. WYATT, JR.

APPELLEE'S PETITION FOR REVIEW

James C. Baker, Jr. (86009)
Jamie Huffman Jones (2003125)
Kimberly D. Young (2003124)
FRIDAY, ELDREDGE & CLARK, LLP
400 West Capitol Ave., Suite 2000
Little Rock, AR 72201
501-376-2011
baker@fridayfirm.com
jjones@fridayfirm.com
kyoung@fridayfirm.com

Wm. Webster Darling (89070)
Entergy Services, LLC
425 West Capitol Ave., 27th Floor
Little Rock, AR 72201
501-377-5838
wdarlin@entergy.com

Attorneys for Appellee Entergy Arkansas, Inc.

Seven months after declaring its caselaw on the known-or-obvious-hazard rule "well established," and recognizing that "it is not the role of this court to adopt a new exception," *Rodriguez v. Chakka*, 2024 Ark. App. 224, at 9, 687 S.W.3d 592, 598, the Court of Appeals adopted a new exception in a 6-3 opinion with no adversarial briefing on the issue. As a result, the known-or-obvious-hazard rule is eliminated from Arkansas law anytime a duty of care is sourced in an ordinance or statute. This Court should grant review under Ark. S. Ct. R. 2-4(d)(ii) & (iii) to correct this legal error that breaks from Arkansas Supreme Court precedent. In support, appellee Entergy Arkansas, Inc. states:

1. This is a negligence case stemming from Antoin Harris's running into a guy wire he knew about and had safely navigated for four years, and the hazard of which he readily appreciated. (RP 127-129, 131, 150, 153).

2. The known-or-obvious-hazard rule has long been fixed in this Court's precedents. *See, e.g.*, *Duran v. Southwest Ark. Elec. Coop.*, 2018 Ark. 33, at 10, 537 S.W.3d 722, 728 ("[T]he duty owed to an invitee is satisfied when the danger is either known or obvious to the invitee."); *Jenkins v. Int'l Paper Co.*, 318 Ark. 663, 670, 887 S.W.2d 300, 304 (1994) ("any duty owed…ends if the plaintiff knows of the danger"). For years, "[i]n Arkansas, the only recognized exception to the open-and-obvious-danger rule is when a business invitee is forced, as a practical matter, to encounter a known or obvious risk in order to perform his job." *Rodriguez*, 2024 Ark. App. 224, at 9.

3. But with its opinion in this case, the Court of Appeals has now created a second exception to the rule that defies decades of Arkansas law.

4. The Court of Appeals held that Entergy's duty to Harris arose from a section of a Pine Bluff ordinance obligating Entergy to comply with the National Electrical Safety Code (NESC) in constructing, operating, and maintaining its electrical facilities in Pine Bluff. Neither party mentioned the NESC or Section 3 of the ordinance in their briefs—the Court raised this source of duty *sua sponte*.

5. The Court of Appeals then held that because the source of the alleged duty was an ordinance, the known-or-obvious-hazard rule did not apply to Harris's collision with the guy wire—even though Harris repeatedly admitted that he "knew from past experience that the guy wire was there." *See*, *e.g.*, Resp. to Pet. for Reh'g at ¶ 3; *Opinion* at 5–7, 10–11.

6. In creating this new exception, the Court of Appeals followed not this Court's precedents, but a Restatement comment—comment d. to Restatement (Second) of Torts § 343A—that has never been cited, let alone adopted, by this Court. *Opinion* at 10. (For a discussion of how comment d. operates, see Ex. A, Pet. for Reh'g at 7.)

7. Notably, no party advanced or briefed this new exception to the known-or-obvious-hazard rule. *Cf. United States v. Sineneng-Smith*, 590 U.S. 371, 375 (2020) ("In our adversarial system of adjudication, we follow the principle of party presentation."); *Greenlaw v. United States*, 554 U.S. 237, 242 (2008) ("[W]e rely on the parties to frame the issues for decision and assign to courts the role of neutral arbiter of matters the parties present.").

8. Perhaps most importantly, the Court of Appeals provided no rationale for abandoning the known-or-obvious-hazard rule in these circumstances. *See Opinion* at 10–11. Why, for example, should the plaintiff's knowledge of a hazard defeat liability when the source of the duty is common law, but not when the source is an ordinance or statute? The principle behind the known-or-obvious-hazard rule is that there is no duty to warn the plaintiff of something he already knows. AMI Civ. 1104 cmt. (citing *Jenkins*, 318 Ark. 663). Whether that "something" is a violation of a common-law duty or a statutory one is beside the point.

9. Even if comment d were Arkansas law, it would not apply on this record, which lacks evidence of any ordinance or statutory violation by Entergy. *See* Ex. A at 9. Entergy provided the requisite conspicuous marker at ground level (RP 248), but at the time of the accident, it was shoved halfway up the guy wire. Harris failed to introduce proof as to how or when this occurred.

10. Entergy asks the Court to grant review to correct the Court of Appeals' new unbriefed exception not found in Arkansas law.

Certificate of Compliance

The undersigned counsel certifies that this Petition for Review complies with Administrative Order No. 19 and Administrative Order 21, Section 9.

Respectfully submitted,

/s/ Kimberly D. Young
Kimberly D. Young

James C. Baker, Jr. (86009)
Jamie Huffman Jones (2003125)
Kimberly D. Young (2003124)
FRIDAY, ELDREDGE & CLARK, LLP
400 West Capitol Ave., Suite 2000
Little Rock, AR 72201
501-376-2011
baker@fridayfirm.com
jjones@fridayfirm.com
kyoung@fridayfirm.com

Wm. Webster Darling (89070)
Entergy Services, LLC
425 West Capitol Ave., 27th Floor
Little Rock, AR 72201
501-377-5838
wdarlin@entergy.com

Certificate of Service

The undersigned counsel certifies that a copy of the Petition for Review is being filed via the court's eFlex system on January 27, 2025, which will provide notice to counsel of record, and that she will mail a copy to the circuit court.

By: */s/ Kimberly D. Young*
Kimberly D. Young

Exhibit A

ELECTRONICALLY FILED
Arkansas Court of Appeals
Kyle E. Burton, Clerk of the Courts
2024-Dec-06 16:46:34
CV-23-100
11 Pages

IN THE ARKANSAS COURT OF APPEALS

PHILLIP CARTER AND ANTOINETTE CARTER-HARRIS AS LEGAL GUARDIANS FOR ANTOIN HARRIS — **APPELLANTS**

V. — **No. CV-23-100**

ENTERGY ARKANSAS, INC. — **APPELLEE**

APPELLEE'S PETITION FOR REHEARING

Comes now the Appellee, Entergy Arkansas, Inc., and for its Petition for Rehearing pursuant to Ark. Sup. Ct. R. 2-3, states:

1. As recently as last spring, this Court recognized that "[o]ur case law is well established regarding the open-and-obvious-danger rule, and it is not the role of this court to adopt a new exception." *Rodriguez v. Chakka*, 2024 Ark. App. 224, at 9, 687 S.W.3d 592, 598. Yet, on November 20, 2024, this Court—with no adversarial briefing on the matter—took on that role.

2. The Court issued a 6–3 opinion reversing the circuit court's grant of summary judgment to Entergy on Appellants' negligence claim that stemmed from Antoin Harris's running into a guy wire he had known about and safely navigated for years. *Carter v. Entergy Ark., Inc.*, 2024 Ark. App. 573. The dividing issue was whether the known-or-obvious-hazard rule applied in light of Harris's undisputed and extensive familiarity with the guy wire.

3. Rather than decide the case on the issue of whether the guy wire was known or obvious to Harris (as the three-judge dissent would have done and consistent

with the parties' briefing), the Court created a new exception, holding that the known-or-obvious-hazard rule does not apply where the scope of a defendant's duty is defined by ordinance—an argument no party advanced and no Arkansas precedent supports. And the Court did so without explaining why the known-or-obvious-hazard rule should apply when a defendant's duty is rooted in common law but not when it is rooted in a city ordinance.

4. The Court's opinion also runs afoul of longstanding Supreme Court precedent—namely *May Construction Co. v. Frick*, 253 Ark. 642, 488 S.W.2d 3 (1972), where the Court held that the plaintiff's admitted knowledge of a sidewalk hazard made the defendant's alleged violation of a city ordinance governing sidewalk obstructions irrelevant.

5. Finally, while not material to its holding, the Court's statement in dicta that "Entergy failed to follow its unambiguous responsibilities as set forth in the ordinance and prescribed by the NESC [National Electrical Safety Code] standards," is based on an error of fact. 2024 Ark. App. 573, at 7. There is no evidence that Entergy constructed the guy marker out of position—only evidence that it was out of position when Harris collided with it.

6. Entergy respectfully seeks rehearing to correct these errors of law and fact.

BRIEF IN SUPPORT

High school senior Antoin Harris was injured when he ran into a guy wire near his school while racing another student. **(RP 131, 150, 153).** Harris testified that after years of attending ROTC practice in the parking lot next to the guy wire, he knew the guy wire was there, and knew he could get hurt if he ran into it, stating, "sometimes I'll go under it, you know, so I don't hit my head or whatnot, or sometimes just take a route and go around." **(RP 129).** Harris had safely navigated the guy wire multiple times a week for four years going to and from his practices. **(RP 127-129).** He "knew they were there," and he "either ducked around them or underneath them or walked around them." **(RP 129).**

Harris's parents filed a negligence claim against Entergy, alleging that Entergy breached the duty of reasonable care by failing to ensure that the yellow guy marker was in its proper place at ground level on the day of Harris's accident. **(RP 34, 142).** According to Plaintiffs, the purpose of a guy marker is to warn pedestrians that the guy wire is there—a fact Harris already knew. **(RP 129).** There was no evidence as to what intervened to move the guy marker up the guy wire after Entergy's installation of it at the ground end of the anchor guy, although vandalism and wind were proffered theories. **(RT 5-6).**

The circuit court granted Entergy summary judgment on two separate grounds:

a) Harris was a licensee on Entergy's utility easement when he was injured, and there was no allegation or proof that Entergy breached the duty owed to a licensee (not to injure him by willful or wanton conduct).

b) Even if Entergy owed Harris the duty of reasonable care, as argued by the Plaintiffs, the known-or-obvious-hazard rule prohibits imposing a duty on Entergy to warn of a hazard of which Harris was already aware. **(RP 1232-1233).**

Reversing the circuit court, this Court concluded that the city ordinance granting Entergy's predecessor a utility easement imposed a duty of reasonable care on Entergy, and that this duty applied regardless of Harris's status on the premises (invitee, licensee, or presumably even trespasser) and—importantly—regardless of whether Harris already knew of the hazard at issue. 2024 Ark. App. 573, at 7. The Court hinged its decision on the NESC requirements imposed by the ordinance, *see id.* at 10-11, and faulted Entergy for not providing any authority applying the NESC in these circumstances, even though no party had even mentioned the NESC—or the part of the ordinance imposing the NESC—in the appellate briefing.

On the way to this conclusion, and while recognizing that the element of breach presented a fact question for the jury, the Court factually erred by remarking in dicta that "Entergy failed to follow its unambiguous responsibilities as set forth in the ordinance and prescribed by the NESC standards." 2024 Ark. App. 573, at 7. This statement was unsupported by the evidence, which establishes only that the marker was out of place when Harris ran into it, not how or when it was shoved up the guy wire following installation or what a proper inspection schedule would have required. The

dissenting opinion, for its part, applied straightforward Arkansas law on the known-or-obvious-hazard rule, and would have affirmed the summary judgment based on the record. *Id.* at 12-18.

A. The known-or-obvious-hazard rule is well established by controlling Supreme Court and Court of Appeals authority.

"[T]he basis of a defendant's liability is superior knowledge of an unreasonable risk of harm of which the [plaintiff], in the exercise of ordinary care, does not or should not know." *Jenkins v. Hestand's Grocery, Inc.*, 320 Ark. 485, 898 S.W.2d 30 (1995). Thus, where this "superior knowledge" by a defendant is lacking, there is no duty. *Id.* "Any duty owed by the owner or occupier ends if the plaintiff knows of the danger." AMI Civ. 1104 cmt. (citing *Jenkins v. Int'l Paper Co.*, 318 Ark. 663, 887 S.W.2d 300 (1994)); *see also Discount Bldg. Materials v. Meeks*, 95 Ark. App. 37, 233 S.W.3d 176 (2006) (no duty to warn of the danger of a sign's crossbar outside defendant's business where the plaintiff had safely navigated around the sign on his bicycle multiple times before); *Hope Med. Park Hosp. v. Varner*, 2019 Ark. App. 82, 568 S.W.3d 818 (no duty to warn of the danger of tree roots where plaintiff had passed them multiple times and appreciated that she could trip over them if she were not paying attention); *Young v. Paxton*, 316 Ark. 655, 873 S.W.2d 546 (1994) (no duty to warn of a tree limb's tendency to rise when the cut portion fell away as plaintiff had seen it happen himself); *D.B. Griffin Warehouse, Inc. v. Sanders*, 349 Ark. 94, 76 S.W.3d 254 (2002) (no duty to warn employees of an independent contractor of the known hazard of falling through a skylight while painting

a roof); AMI Civ. 1002 ("There is no duty . . . to warn a user of obvious dangers **or those known to him** . . . .") (emphasis added).

Though they were cited by the dissenting opinion, the Court ignored its own precedents in *Meeks* and *Varner*, which the dissent rightly recognized as directly on point. In *Meeks*, this Court reversed a verdict for a minor plaintiff who struck a sign's crossbar while riding his bicycle on the sidewalk, noting that there was simply "no duty to warn of obvious or patent dangers" like the crossbar. 95 Ark. App. at 41. Similarly, in *Varner*, the Court held that the defendant was entitled to judgment as a matter of law where the plaintiff was aware of the tree-root tripping hazard and its risks before she was injured. 2019 Ark. App. 82, at 5.

Rather than apply this binding precedent regarding the known-or-obvious hazard rule, the court chose, sua sponte, to adopt a new exception to the rule.

B. Arkansas recognizes only one exception to the known-or-obvious-hazard rule (which is not applicable here), and the Court committed an error of law by declining to uphold the rule.

Despite the pivotal admission that Harris had actual knowledge of the hazard, the Court nonetheless held that the circuit court erred by applying the known-or-obvious-hazard rule, concluding that the rule does not apply if the source of the duty is an ordinance as opposed to common law. 2024 Ark. App. 573, at 10-11. No party raised this argument, and the Court cited no Arkansas precedent so holding. Instead it relied solely on comment d. to Restatement (Second) of Torts § 343A, which the Arkansas Supreme Court has never cited or adopted. *Id.*

Comment d. states that when a statute requires a landowner to keep land "in a condition safe for invitees, or even for licensees, or to take particular precautions for the safety of such visitors[,]" the visitor's knowledge that the landowner has not complied with the statute[1] does not prevent the landowner's liability for the condition, but rather is "material only in determining" the visitor's contributory negligence or assumption of risk. Restatement (Second) of Torts § 343A cmt. d.

Notably, neither comment d., nor the Court's opinion, provides any rationale for why the plaintiff's knowledge of a hazard should defeat liability when the duty is sourced in common law, but not when it is sourced in a statute. The principle behind the known-or-obvious-hazard rule is that there is no duty to warn the plaintiff of something he already knows. AMI Civ. 1104 cmt. (citing *Jenkins*, 318 Ark. 663, 887 S.W.2d 300). Whether that "something" is a violation of a common-law duty or a statutory duty is beside the point. Nor did the Court explain how its new ordinance-based exception to the known-or-obvious hazard rule can be squared with AMI Civ. 601, which recognizes that an ordinance violation is "not necessarily negligence." Under comment d., a foundational defense (the fact that the plaintiff knew of the hazard, thus obviating any duty) is taken off the table, leaving only contributory negligence as a setoff. That is not consistent with Arkansas law.

[1] As addressed in Section D, even if comment d. were Arkansas law (it is not), the record contains no evidence of a statutory violation necessary to trigger its application.

To the contrary, as the dissent acknowledged, "in Arkansas, the *only* recognized exception to the open-and-obvious-danger rule is when a business invitee is forced, as a practical matter, to encounter that danger in order to perform his or her job." 2024 Ark. App. 573, at 6 (emphasis added) (citing *Rodriguez*, 2024 Ark. App. 224, at 9). And, as the dissent correctly concluded, the sole exception to the rule does not apply here because Harris "was neither working at the time he ran into the guy wire nor forced to encounter the guy wire for any reason, job related or not. To the contrary, the undisputed evidence establishes that he was free to cross the street at the intersection or to go around or under the guy wire and that he had done so numerous times in the past." *Id.* Creating and applying this new un-briefed exception to the known-or-obvious-hazard rule was error.

C. Pursuant to the Supreme Court's holding in *Frick*, a plaintiff's actual knowledge of the hazard renders the defendant's alleged failure to comply with an ordinance governing the hazard irrelevant.

In *Frick*, a woman tripped over hoses a contractor had placed across the public sidewalk next to her home. 253 Ark. 642. The plaintiff testified that she was aware of the hoses because she had seen them before her fall. She believed she could safely maneuver around them, but failed to do so. Because of her actual knowledge of the hazard, the Court concluded that "the defendant's conduct was not a proximate cause of the plaintiff's injury." 253 Ark. at 644. Therefore, said the Court, it is "unnecessary for us to consider whether either a city ordinance or a Department of Labor code provision, both having to do with sidewalk obstructions, should have been considered

by the jury." *Id.* Harris already knew the guy wire was there. As such, any ordinance requiring a guy marker to warn of the guy wire's presence is irrelevant under *Frick*.

D. The Court committed an error of fact by stating in dicta that Entergy failed to follow its responsibilities under the NESC.

The Court ruled only on the applicable duty, stating that the elements of "[t]he breach thereof and resulting damages are questions for the fact-finder." 2024 Ark. App. 573, at 11. However, the Court committed an error of fact by stating in dicta that "Entergy failed to follow its unambiguous responsibilities as set forth in the ordinance and prescribed by the NESC standards." *Id.* at 7. There is no evidence that Entergy constructed the guy marker out of position, only evidence that it was out of position when Harris collided with the guy wire. The record is silent as to when or how the marker was moved up the guy wire after its installation at the ground end of the anchor guy (though vandalism or wind were proffered theories). **(RT 5-6).** Further, the record contains no evidence that Entergy failed to meet any inspection standard applicable to its state-wide facilities. This remark was therefore error.

CONCLUSION

The rationale for the known-or-obvious-hazard rule is that actual knowledge of a danger is equivalent, if not superior, to a warning of it. Nothing is gained by shifting responsibility to an owner or possessor of land when the visitor is in just as good a position to evaluate a hazard. And that is true whether the possessor's duty to the visitor is governed by common law or positive law. That is why Arkansas has so consistently

upheld the known-or-obvious-hazard rule and narrowly construed its sole exception. Entergy respectfully seeks rehearing to correct the errors of law and fact outlined herein.

Certificate of Merit and Admin. Order 19 Compliance

The undersigned counsel certifies that this Petition for Rehearing is not for the purpose of delay, and it complies with Administrative Order No. 19 and Administrative Order 21, Section 9.

Respectfully submitted,

/s/ Kimberly D. Young
Kimberly D. Young

James C. Baker, Jr. (86009)
Jamie Huffman Jones (2003125)
Kimberly D. Young (2003124)
FRIDAY, ELDREDGE & CLARK, LLP
400 West Capitol Ave., Suite 2000
Little Rock, AR 72201
501-376-2011
baker@fridayfirm.com
jjones@fridayfirm.com
kyoung@fridayfirm.com

Wm. Webster Darling (89070)
Entergy Services, LLC
425 West Capitol Ave., 27th Floor
Little Rock, AR 72201
501-377-5838
wdarlin@entergy.com

Certificate of Service

The undersigned counsel certifies that a copy of the Petition for Rehearing is being filed via the court's eFlex system on December 6, 2024, which will provide notice to counsel of record, and that she will mail a copy to the circuit court.

By: */s/ Kimberly D. Young*
Kimberly D. Young